

11	30-2024-01395894 Librush vs. General Motors, LLC	Off Calendar
12	30-2024-01396064 Mesbah vs. ALHV, LLC	1) Motion to Deem ALHV's Requests for Admission Responses as Admitted Plaintiff Ezat Mesbah, by and through her Successor in Interest Alan Safari's ("Plaintiff") unopposed Motion to Deem defendant ALHV, LLC dba Villa Valencia Healthcare Center's ("ALHV") responses to Requests for Admission, Set One ("RFA") as admitted is DENIED as ALHV served responses to the RFA's on March 6, 2025 (See Declaration of Jessica Munoz, Exhibit D). Where a compliant RFA response is in place prior to the hearing, the sanction of deeming the RFAs admitted is unavailable. Civ. Proc. Code § 2033.280(c). However, monetary sanctions for the expense of moving for these responses may still be obtained and, here, Plaintiff requests \$2,430 in monetary sanctions against ALHV and its counsel of record on this motion. Counsel's billing rate is a reasonable \$395/hr. The hours requested are high given no opposition or reply brief was filed on this motion, and that requested time is deducted. The appearance time is also split evenly between the four motions. The total monetary sanctions against ALHV and its counsel of record on this motion is: \$395/hr. x 2 hrs. + \$60 fee = \$850 2) Motion to Compel Aspen's Responses to Form Interrogatories Plaintiff's Motion to Compel defendant Aspen Skilled Healthcare, Inc.'s ("Aspen") responses to Form Interrogatories, Set One ("FROG") is GRANTED The proof of service ("POS") of the FAC indicates that "FROG – General" were served on Aspen. (ROA 34.) Although Aspen argues there is no proof the FROG was served on Aspen and subsequently that the "corrected" POS does not prove service on Aspen, the original POS <u>does</u> state FROG were served on Aspen. Additionally, defense counsel appears to concede Aspen was served with the discovery requests specifically to Aspen and not simply as to ALHV. (Opposition